

Criminal Law, Investigation and Procedure Victoria
Trial Procedure
Evidence
Evidence Act 2008 (Annotated)
Chapter 3 – Admissibility of Evidence (ss 55–139)
Part 3.4 – Admissions (ss 81–90)
PART 3.4 COMMENTARY
Last Review: 28/09/2023

[EA.PT3.4.20] Overview – definition of an admission

View [pt 3.4 of the Evidence Act 2008 \(Vic\)](#) within the legislation collection.

Overview – definition of an admission [\[EA.PT3.4.20\]](#)

Approach to admissibility of admissions [\[EA.PT3.4.40\]](#)

[Section 81 of the Evidence Act 2008](#) adopts the position at common law that admissions (despite their hearsay character) are admissible. The rationale for this is that it is assumed that people would not make a statement against their self-interest unless it was true.¹ [Section 82](#) adopts the position at common law that in order for an admission to be admissible, the evidence must come from the maker of the statement or a person who was present when the admission was made.

Statements which are equivocal are generally not regarded as admissions, see [Bell v The Queen \[2017\] NSWCCA 207](#).²

An “admission” is defined in the Dictionary as “a previous representation” that is–

- (a) made by a person who is or becomes a party to a proceeding (including a defendant in a criminal proceeding); and

- (b) adverse to the person's interest in the outcome of the proceeding.

In *R v A (a child)* (2000) 115 A Crim R 1; [2000] NSWSC 627³ it was held that the refusal to participate in an identification parade did not amount to an admission. In *R v Knight* (2001) 120 A Crim R 381; 160 FLR 465; [2001] NSWCCA 114⁴ it was held that providing handwriting samples was not an admission. In *R v G* [2005] NSWCCA 291⁵ it was held that posing for a photograph at the request of the police was not an admission, even though it was used in a manner adverse to the accused's personal interest. The section directly under consideration was s 13 of the *Children (Criminal Proceedings) Act 1987* (NSW), however, there is no reason to suggest that the meaning of admission in this section relevantly differs from that in the *Evidence Act 2008*. In *ML v The Queen* [2011] VSCA 193⁶ the court emphasised that a statement is not an admission unless it is adverse to the maker's interest *and* that this was the case at the time the statement was made.

At common law, third party admissions are not admissible in criminal cases. This was confirmed by the High Court in *Baker v The Queen* (2012) 245 CLR 632; 86 ALJR 906; 224 A Crim R 293; 289 ALR 614; [2012] HCA 27.⁷ *Baker v The Queen* (2012) 245 CLR 632; 86 ALJR 906; 224 A Crim R 293; 289 ALR 614; [2012] HCA 27 does not relate to the UEA. But in that case some judges made obiter comments about admissibility under the UEA. The plurality stated:⁸

In *Bannon*, McHugh J commented on the enactment of the *Evidence Act 1995* (Cth) and comparable legislation in New South Wales, then the only jurisdictions to have adopted uniform Evidence Acts. In circumstances in which other States might adopt some or all of the provisions of the Commonwealth Act, his Honour proposed that this Court adopt a cautious approach to the development of new exceptions to the hearsay rule. While the uniform Evidence Acts preserve the rule against hearsay, the treatment of the rule and the exceptions to it differs in material respects from the common law. Whether LM's previous representations would meet the conditions of s 65(2)(b), (c) or (d) of the *Evidence Act 2008* need not be addressed. Section 65(8) provides a broad exception to the hearsay rule with respect to first hand hearsay adduced by a defendant in criminal proceedings. The only condition for the admission of evidence of a previous representation given by a person who saw, heard or otherwise perceived it being made when adduced by an accused is for the provision of reasonable notice. If the appellant's broad contention were upheld, it would have no consequence for any new trial at which the admission of LM's statements (if he were unavailable to give evidence) would be governed by the *Evidence Act 2008*.

The consequence of upholding the broad contention would be to effect a significant alteration to the common law of evidence in those States which to date have chosen not to adopt the uniform *Evidence Act* or to modify the hearsay rule along the lines of the English legislation or otherwise. In circumstances in which the application of the hearsay rule in the

appellant's trial did not occasion a miscarriage of justice, the invitation to effect that change should be rejected.

[EA.PT3.4.40] Approach to admissibility of admissions

At common law, in order for admissions to be admissible it had to be established that they were voluntary and that they were not excluded on the basis of either the “illegality” or “unfairness” discretions. A similar approach is adopted under the Act.

Footnotes

- 1 [*Sinclair v The King* \(1946\) 73 CLR 316 at 334.](#)
- 2 [*Bell v The Queen* \[2017\] NSWCCA 207 at \[148\]–\[150\].](#)
- 3 [*R v A \(a child\)* \(2000\) 115 A Crim R 1; \[2000\] NSWSC 627.](#)
- 4 [*R v Knight* \(2001\) 120 A Crim R 381; 160 FLR 465; \[2001\] NSWCCA 114.](#)
- 5 [*R v G* \[2005\] NSWCCA 291.](#)
- 6 [*ML v The Queen* \[2011\] VSCA 193.](#) See also [*Evans v Powell* \[2012\] NSWSC 1384.](#)
- 7 [*Baker v The Queen* \(2012\) 245 CLR 632; 86 ALJR 906; 224 A Crim R 293; 289 ALR 614; \[2012\] HCA 27.](#)
- 8 [*Baker v The Queen* \(2012\) 245 CLR 632; 86 ALJR 906; 224 A Crim R 293; 289 ALR 614; \[2012\] HCA 27 at \[55\]–\[56\], footnotes omitted.](#)